ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	151st Commission Meeting
DATE:	15th November 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	Apprise regular HR updates – HRS *The Asst. HRO apprised on the decisions of the 122nd HRC meeting as follows:* • *Change in the Chairperson of the HRC;* • *Nomination of the officials for the Excel Training to be conducted in Professional Development Center, Tsirang;* • *Expression of Interest to apply for the LTT at RIM under the RGoB scholarship by Mr. Phuntsho Namgay, Sr. CMO;* • *Workshop attended by the Legal Division at JSW Law on the Needs Assessment for Child;* • *Ineligibility of one of the staff proposed for meritorious promotion;* • *Conversion of Position Title of Acting Director, DoPE from ES to EX; and* • *Performance Improvement Plan of staff rated as 'Partially Meeting Expectation'.*	**The Commission noted the decision with the following specific directions:** - **HRC Chairperson and HRS to take up the matter of Position Title conversion during the meeting with the Commissioner In-charge of the RCSC. Further, HRS to find out any undertaking signed by the individual with the RCSC while opting current category;** - **To apprise on the possibility of retaining officials who are currently on contract and those regular staff in the Supervisory and Support Category who have appeared the BCSE if they get selected; and** - **HRS to explore advantages for those individuals who have cleared the Bar Examination.** **Regarding the PIP, the HRS was directed to explore trainings that befits their work to ensure productive professional development.**

2	Present proposal on management of seized properties and assets – CFD, DoPS *The CFD sought the directives of the Commission on the following issues vis-à-vis the case 01/2014:* - *Seized cash of Phurba Tamang:* - *Seized cash of Jiban Desakar; and* - *Seized i-10 car.* *In addition, the Division also apprised on the inconsistency in the amount maintained in the ACC's seizure list and the judgment rendered regarding the case 01/2011. The amount reflected in the judgment is Nu. 116,000/-, while the amount reflected in the seizure list is Nu. 110,500/-*	**To this, the Commission directed the following:** - **Hand over the seized cash of Phurba Tamang;** - **Find out whereabouts of Jiban Desakar;** - **Hand over seized i-10 car by getting statements from sureties and the lawyer.** **The Commission directed to mention on the inconsistency while writing to the MoF on depositing cash to the Government Revenue Account.**
3	Apprise on appeal related to TA/DA – SS *The Head, SS apprised on the current practice where drivers are deployed to the Regional Offices for the period of six months and paid Daily Allowance (DA). In view that such practice will apparently invite audit scrutiny, the matter has been discussed in the HRC and decided to be discontinued forthwith. In this regard, following options were proposed:* • *Provide 45% allowance from the justification of drivers having to accompany investigation teams in the regions; and* • *Transfer to the Regional Office for six months with the DA admissible only when they are out of the respective stations.*	**The Commission noted the HRC's decision to do away with current practice of providing DA to the drivers when deployed in Regional Offices.** **In principle, the Commission endorsed the proposal to pay 45% allowance, with the following directives:** - **To strictly follow the admissibility criteria; and** - **Individual to produce a letter with justification that the one has been engaged in the investigation related work for a period of not less than 30 days signed by the investigation team leader and counter-signed by the Regional Director to be admissible for the allowance.** **Besides, to ensure uniform application, the SS was directed to explore the possibilities of deploying drivers on transfer like any other staff.**
4	Apprise on Trashigang RO partition – SS & Trashigang RO	

	The Head, SS and Regional Director of RO Trashigang presented the proposal on the partitioning of the current office space with the budget estimate. *Further, the Head of SS apprised on their plan to fix signboards in the Head Office and submitted if the letters in the signboard should be both in English and Dzongkha.*	**Endorsed as proposed.** **Directed to include both Dzongkha and English.**
5	Apprise on workshop attended on 'Needs Assessment for Child Justice' – LD *The Legal Division (LD) apprised on the workshop attended on the 'Needs Assessment for Child Justice' and shared on the necessity to integrate elements of Child Justice into the ACC's processes.* *In addition, the Division apprised on the request received from the DoPS on the need to involve experienced Legal Officer during the meetings on complaints, IE and ATR in view of the current capacity gap in the Department.*	**To this, the LD was directed to come up with appropriate proposal as to where elements of Child Justice can be integrated into ACC's processes.** **The Commission directed to immediately involve one of the experienced Legal Officers during the meeting on complaints, IE and ATR as proposed.**
6	Present draft proposal on promoting clean business environment – PD & PPD *Building on the review findings of the existing Business Integrity Initiative of Bhutan, the PPD and PD presented a proposal towards reinforcing the clean business in the country.* *The proposal includes revised strategies, which are:* - *Raising awareness to capacitate businesses to build and implement resilient anti-corruption compliance and programs;* - *Providing support to ensure business friendly environment and incentives to investors; and* - *Setting up sustained dialogue to forge Collective Action to fight corruption.*	**In principle, the Commission endorsed the revised strategy including DAMTSI certification, forging collective action and integrating private sector integrity in the NIA, among others and further directed to:** - **Consult with the relevant stakeholders to assess their receptivity to the program prior to full-fledge implementation and update the Commission on the progress.**

Commissioner **Commissioner** **Chairperson**

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